

Argument for the judge.

he should receive the protection of the law only in those cases where no protection is required.*

Accordingly, for more than five hundred years, by a uniform series of decisions, judges have been held exempt from personal responsibility for their judicial words and acts.†

Consider the results which would follow from a contrary doctrine. Suppose that the defendant consulted several of his associates, who all concurred with him, or suppose that two or more of the justices acted together upon this matter, and that they nevertheless came to a wrong decision, would all be liable in damages? If so, should they be sued jointly or severally? In case one dissented, should he be held liable with the rest, or should he, by reason of his dissent, be exonerated, and the rest held liable? This would be to offer a bounty on dissent. Suppose the case was carried by appeal, or otherwise, before another tribunal, which ratified the doings of the first, and yet this court should think both tribunals mistaken, should the justices of the higher tribunal be also liable in damages? And if so, should they be sued separately, or jointly with the justices of the Superior Court? Are the justices of the Supreme Judicial Court of Massachusetts, who held that the doings of defendant, now sued, were, in all respects, conformable to the constitution and

* See *Taafe v. Downes*, *supra*, 533.

† (A.D. 1354.) *Book of Assizes*, 27 Edw. III, pl. 18; (A.D. 1431.) *1 Rolle's Abridgment*, 92; 9 Hen. VI, 60, B.; (A.D. 1561.) *Gwynne v. Poole*, *Lutwyche*, 937, *arguendo*; (A.D. 1589.) *Green v. Hundred of Buccles Church*, 1 *Leonard*, 323, *arguendo*; (A.D. 1608.) *Floyd & Barker's Case*, 12 *Reports*, 23; (A.D. 1616.) *Bagg's Case*, 11 *Id.* 93 *b*; (A.D. 1621.) *Aire v. Sedgwick*, 2 *Rolle*, 199; (A.D. 1633.) *Metcalf v. Hodgson*, *Hutton*, 120; *Bushell's Case*, 1 *Modern*, 119; *Hamond v. Howell*, *Id.* 184; *S. C.* 2 *Mod.* 218; *Groenvelt v. Burwell*, 1 *Ld. Raymond*, 454; *S. C.* 1 *Salkeld*, 200; *Anon.* 1 *Salkeld*, 201; *Mostyn v. Fabrigas*, 1 *Cowper*, 172; *Duke of Newcastle v. Clark*, 3 *Taunton*, 632; *Garnett v. Ferrand*, 6 *Barnewall & Creswell*, 611; *Miller v. Hope*, 2 *Shaw's Appeal Cases*, 125; *Kemp v. Neville*, 7 *Jurist* (N. S.), 913; *Scott v. Stansfield*, *Law Reports*, 3 *Exchequer*, 220; *Brodie v. Rutledge*, 2 *Bay*, 69; *Phelps v. Sill*, 1 *Day*, 315; *Yates v. Lansing*, 5 *Johnson*, 283; *S. C.* 9 *Id.* 395; *Cunningham v. Bucklin*, 8 *Cowen*, 173; *Weaver v. Devendorf*, 3 *Denio*, 117; *Burnham v. Stevens*, 33 *New Hampshire*, 247; *Kelley v. Dresser*, 11 *Allen*, 31.